

23SMCV05742 23SMCV05742

County: los-angeles

Division: Civil Law and Motion

Department: I

Hearing date: 2026-08-27

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The issue is plaintiff's motion to enforce a settlement. The settlement in question called for the payment of money over time in return for a release. It also contained a non-disparagement clause that was expressly stated to be a material term. The clause stated that if plaintiff disparaged defendants, then they would be entitled to a return of their money but the release would remain in force. According to defendants, after the agreement was signed plaintiff made a disparaging post concerning one of defendants' officers. Defendants asked that the post be removed and sent a cease and desist letter. At the last hearing, plaintiff suggested that she immediately took it down. The court was concerned that by sending a letter telling her to take down the post and implying that the failure to do so would jeopardize the settlement, defendants were impliedly saying that if plaintiff complied, the settlement would remain. Having re-read the letter, it really cannot be understood any other way. According to defendants, though, plaintiff did not take it down immediately. Indeed, it was not until almost two weeks later that the post came down. It appears that defendants' time line is the more accurate based on documentary evidence. Plaintiff might suggest that she could not take it down because she was dealing with medical issues. That might be, but under the agreement, it should never have been put up in the first place. The delay, for whatever reason, is significant.

The settlement agreement is a contract like any other. It appears that plaintiff breached the contract by posting the video that disparaged defendants. That would be a material breach and would excuse defendants from further performance.

The court need not, and does not, determine definitively whether a cause of action would lie against either party for breach, but the court does believe that defendants' showing is that it likely would be so considered. Accordingly, the motion to enforce the

settlement by requiring defendants to continue to pay additional sums is DENIED. The court will not go further and opine as to what might or might not be the consequence of anything that might happen in the future or is not now before the court.